

JOINT NOTICE OF PRIVACY PRACTICES

Effective Date 2/16/2026

THIS NOTICE DESCRIBES HOW MEDICAL INFORMATION ABOUT YOU MAY BE USED AND DISCLOSED, YOUR RIGHTS WITH RESPECT TO YOUR HEALTH INFORMATION, HOW YOU CAN GET ACCESS TO THIS INFORMATION, AND HOW TO FILE A COMPLAINT CONCERNING A VIOLATION OF THE PRIVACY OR SECURITY OF YOUR HEALTH INFORMATION. PLEASE REVIEW IT CAREFULLY.

YOU HAVE A RIGHT TO A PAPER OR ELECTRONIC COPY OF THIS NOTICE AND TO DISCUSS IT WITH THE DESIGNATED PRIVACY CONTACT INCLUDED ON APPENDIX A. FOR QUESTIONS ON ROCHESTER, FINGER LAKES AND WNY AFFILIATE SITES, PLEASE CALL 1-877-922-5465 OR EMAIL PRIVACYOFFICE@ROCHESTERREGIONAL.ORG; FOR NORTHERN NEW YORK AFFILIATE SITES, PLEASE CALL 315-261-5050 OR EMAIL SLHPRIVACYOFFICE@ROCHESTERREGIONAL.ORG.

Rochester Regional Health is an integrated health care system with Affiliates throughout Rochester, the Finger Lakes, Western, and Northern New York. Rochester Regional Health and its Affiliates listed on [Appendix A](#) at the end of this Notice participate in an organized health care arrangement, which means that these entities share health information with each other as may be necessary for joint treatment, payment, and health care operations (i.e. business) purposes, to the extent authorized by law. Rochester Regional Health and its Affiliates are collectively referred to herein as “Rochester Regional Health” or “RRH” in this Notice.

This Notice applies to delivery of health care services by Rochester Regional Health, including the hospitals, nursing homes, clinics, physician offices, home care, hospice, personnel that are members of our workforce, and all members of the Medical Staffs within our system of care. This Notice describes the practices of our facilities and programs, as well as those applicable to any health care professional, or staff member authorized to access or enter information in your health record.

OUR RESPONSIBILITIES

- We are required by law to maintain the privacy and security of your health information.
- We will let you know promptly if a breach occurs that may have compromised the privacy or security of your information.
- We must follow the duties and privacy practices described in this Notice and give you a copy of it.
- We will not use or share your information other than as described in this Notice unless you tell us we can in writing. If you tell us we can, you may change your mind at any time. Let us know in writing if you change your mind.

OUR USES AND DISCLOSURES

How do we typically use or share your health information?

Treating You: We can use and share your health information, including mental health, chemical dependency treatment records, and HIV-related information, and share it with other professionals who are treating you, or other personnel who are involved in your care, as authorized by law. For substance use disorder-related (“SUD”) records, we must also follow confidentiality protections of 42 CFR Part 2, which are described further below. Where uses and disclosures are more limited by 42 CFR Part 2, we will abide by such restrictions.

Some or all of your health information may be created and/or stored in an Electronic Health Record, which may be accessed by providers or other personnel involved in your care with authority or need, or when permissible by law to do so. We use and share your health information across all Rochester Regional Health clinical services so there is one Electronic Health Record for each patient in the system.

Example: Your physician or nurse may access your medical record for the purpose of treating you. If you are being treated for a specific injury, they may ask another provider about your overall health condition.

Example: If you see a physician for primary care at one Rochester Regional Health location and you are referred to a different location for a specialty service, your specialist will have access to the information entered by your primary care physician.

Running Our Organization: We can use and share your health information when performing a variety of business activities, which we call “health care operations”. These health care operations allow us to run our hospitals and clinics, improve the quality of care we provide, and contact you when necessary. Rochester Regional Health personnel across the system have access to your Electronic Health Record so that we can conduct joint business operations.

Example: Rochester Regional Health personnel may access your Electronic Health Record to review and evaluate the skills, qualifications, and performance of health care providers taking care of you.

Billing for Services: We can use and share your health information to bill and get payment from health plans or other entities.

Example: We give information about you to your health insurance plan so it will pay for your services.

Persons Involved in Your Care: We may disclose your health information to a relative, close personal friend, or any other person you identify if that person is involved in your care and the information is relevant to your care. If the patient is a minor, we may disclose the minor’s health information to a parent, guardian, or other person responsible for the minor, except in limited circumstances.

Facility Directory: We may include limited information about you in a facility directory while you are at one of our facilities. This information may include your name, location, and your religious affiliation. The directory information, except your religious affiliation, may be released to people who ask for you by name. You have the right to request that your name not be included in this directory.

Treatment Reminders and Alternatives: We may contact you to remind you of appointments you’ve scheduled with us. We may also use or disclose your information to provide you with information about treatment alternatives or other health-related benefits and services that may be of interest to you.

Example: We may e-mail you a newsletter or other information on health-related benefits of interest to you.

Care Transitions: We may disclose your health information to other health care providers and organizations who may potentially help coordinate and improve the services you receive. These communications help us manage your care and ensure that you get the necessary follow-up services to stay healthy.

Example: In order to develop your discharge plan, we may talk to a home health provider to see what services are available to help you manage your health at home.

De-identified Data: We may use your protected health information (PHI) to create data that cannot be linked to you by removing certain elements from your PHI, such as your name, address, telephone number, and medical record number. We may use such de-identified information for certain business purposes, or disclose your PHI to a business associate for the purpose of creating de-identified information.

Example: We may use de-identified information to create summary reports or to monitor trends in order to help us improve services delivery.

Incidental Uses and Disclosures: In order to ensure that communications essential to providing quality healthcare are not hindered, incidental disclosures may occur. We will make reasonable efforts to limit these incidental disclosures.

Example: After surgery, the nurse or physician may need to use your name to identify family members that may be waiting for you in a waiting area and other individuals waiting in the same area may hear your name called.

How else can we use or share your health information?

We are allowed or required to share your information in other ways – usually in ways that contribute to the public good, such as public health and research. We have to meet many conditions in state and federal laws before we can share your information for these purposes.

Required by Law: We will use and disclose medical information about you whenever we are required by federal or state law to do so.

Example: State law requires us to report gunshot wounds and other injuries to the police and to report known or suspected child abuse or neglect to the Department of Social Services. We will comply with those state laws and with all other applicable laws.

Health Information Exchanges; Data Exchange Technologies: We may access, share, store and/or transmit your health information, including sensitive information related to HIV, sexually transmitted diseases, mental health, drug and alcohol treatment, genetic testing, and reproductive health, electronically through the “SHIN-NY”, a statewide health information network, and with other health information exchanges (HIEs) for treatment, payment and health care operations purposes. RRH also uses data exchange technologies, such as record locator services, APIs (as described below), direct messaging services, and provider portals with its EHR to exchange your health records for permitted purposes. HIEs and data exchange technology providers function as our business associate, enabling the sharing of your health records for continuity of care and to improve the quality of health care services provided to you (i.e., avoiding unnecessary duplicate testing). These entities must implement administrative, technical, and physical safeguards that reasonably and appropriately protect the confidentiality, integrity, and security of your health information. Applicable law may provide you with rights to restrict, opt-in, or opt-out of HIEs, including the SHIN-NY. Please contact the designated Privacy Contact on Appendix A for more information.

Business Associates and/or Qualified Service Organizations: We may disclose information to a person or entity we contract with to perform some of our business functions. We require all of our business associates to appropriately safeguard your information with the same diligence that we would. If receiving SUD information, the entity agrees to be bound by 42 CFR Part 2 and, if necessary, resist in judicial proceedings any efforts to obtain access to patient records except as permitted by law.

Example: We may disclose your health information to a billing service in order to bill your insurance company, or to our attorneys.

Rochester Regional Clinically Integrated Network: Is an organization that helps to coordinate and manage health care in order to manage cost and reduce duplicate or unnecessary services. We may share your health information with Rochester Regional Clinically Integrated Network to help coordinate your care. This may include certain sensitive information. Such disclosures are permitted based on the treatment, payment, or health care operations exceptions, and in some instances based on your consent.

Help With Public Health and Safety Issues: We can share health information about you for certain situations such as:

- Preventing disease
- Helping with product or device recalls
- Reporting adverse reactions to medications
- Reporting abuse and neglect
- Preventing or reducing a serious threat to anyone’s health or safety

Do Research: We can use or share your information for health research if the research organization has satisfied certain conditions protecting the privacy of health information.

Respond to Organ and Tissue Donation Requests We can share health information about you with organ procurement organizations.

Cancer Registry: If you have newly diagnosed cancer, we will release your health information to the New York State Cancer Registry.

Work with a Coroner, Medical Examiner or Funeral Director: We can share health information with a coroner, medical examiner, or funeral director when an individual dies.

Example: This may be necessary to identify a deceased person or determine cause of death.

Address Workers’ Compensation, Law Enforcement, and Other Government Requests: We can use or share health information about you:

- For workers’ compensation claims or similar programs providing benefits for work-related injuries or illness
- For law enforcement purposes, where required or permitted by applicable law
- With governmental, licensing, auditing and accrediting agencies for health oversight activities, including audits, investigations, inspections and licensure
- For special government functions such as military, national security and intelligence activities, and presidential protective services
- With the Department of Corrections as necessary for us to provide you with healthcare, to protect your health and safety or the health and safety of others, or for the safety and security of the correctional institution

Respond To Lawsuits and Legal Actions: We can share health information about you in response to a court or administrative order, or in response to a subpoena, discovery request, warrant, summons or other lawful process as authorized or required by law.

YOUR CHOICES

For certain health information, you can tell us your choices about what we share. If you have a clear preference for how we share your information in the situations described below, talk to us.

Tell us what you want us to do, and we will follow your instructions.

In these cases, you have both the right and choice to tell us to:

- Share information with your family, close friends, or others involved in your care
- Share information in a disaster relief situation
- Include your information in a hospital directory
- Opt-out of our national record locator service

If you are not able to tell us your preference, for example, if you are unconscious, we may go ahead and share your information if we believe it is in your best interest. We may also share your information when needed to lessen a serious and imminent threat to health or safety.

In the case of fundraising: We may use or disclose to our affiliated foundation limited identifying information from patient lists to send you material in connection with our fundraising efforts. You have the right to opt-out of receiving fundraising communications and any materials you receive will describe the opt-out process.

Special Considerations: We will follow federal and state laws that provide additional protection to the following types of information:

- Records from Substance Use Disorder (SUD) treatment programs, as described below
- Clinical records from mental health programs
- HIV/AIDS related information
- Certain information related to minors
- Genetic information

Behavioral Health Treatment and Care Coordination:

Mental Health and SUD treatment information is subject to enhanced protections under state and federal law, which we follow. Treatment of these conditions is increasingly done on an integrated basis in our Behavioral Health clinics and we encourage Behavioral Health providers to coordinate and manage care of patients seen at multiple sites. If you are a patient of one of these clinics, we will ask for your permission to disclose your information for treatment and care coordination purposes to Behavioral Health providers at other clinics where you have an established treatment relationship.

In these cases, we never share your information unless you give us written permission:

- Marketing purposes
- Sale of your information
- Most uses and disclosures of psychotherapy notes or SUD counseling notes, if we maintain psychotherapy or SUD notes

Use and disclosure of substance use disorder (SUD) treatment records

In addition to the privacy protections afforded to all medical records under HIPAA, the confidentiality of SUD records is protected by federal law, 42 U.S.C. §290dd-2 and 42 C.F.R. Part 2 (referred to as “Part 2”). Certain RRH Affiliates operate Part 2 covered programs which information is maintained by RRH. RRH may also receive records containing SUD information, which records may be protected by Part 2. The information in this section is intended to provide patients of those programs with a summary of the laws and regulations governing SUD treatment records. We will obtain your written consent to use and disclose your Part 2 Records unless we are permitted to use and disclose Part 2 Records without your written consent, as described below. RRH will only make uses and disclosures of your Part 2 information not described in this Notice with your written consent.

Uses and Disclosures of Part 2 Information without Written Consent

Medical Emergencies: We may disclose your information to medical personnel to the extent necessary to meet a bona fide medical emergency in which you are unable to provide prior written consent of the disclosure. We may also disclose your identifying information to medical personnel of the Food and Drug Administration (“FDA”) who assert a reason to believe that your health may be threatened by an error in the manufacture, labeling, or sale of a product under FDA jurisdiction, and that the information will be used for the exclusive purpose of notifying patients or their physicians of potential dangers.

Research: Under certain circumstances, we may disclose your information for scientific research, subject to certain safeguards.

Audits and Evaluations: We may disclose information to others for specific audits or evaluations, including those who provide financial assistance to RRH or those who conduct audits and evaluations necessary under federally-funded health care programs and federal agencies with oversight of those programs.

Public Health: We may disclose records without your consent to public health authorities (for example, the CDC), provided that the records disclosed are de-identified according to HIPAA standards.

Specific Uses and Disclosures of Part 2 Information Requiring Written Consent

Designated persons or entities: We may use and disclose your information in accordance with your written consent to any person or entities you identify in the consent.

Single Consent for Treatment, Payment and Health Care Operations: You may provide a single consent for all future uses or disclosures of your SUD information for treatment, payment and health care operations purposes. If your SUD information is disclosed for such purposes to another Part 2 program, HIPAA-covered entity, or business associate pursuant to your written consent, your health information may be re-disclosed by the recipient in accordance with the permissions contained in HIPAA, except for uses and disclosures for civil, criminal, administrative, or legislative proceedings against you. To the extent our operations include fundraising activities, you have the right to opt out of receiving any such communications.

For Judicial Proceedings: We may disclose information or records about you in response to a court order and subpoena (or other similar legal mandate) that complies with the requirements of Part 2, or based on your specific written consent. Records (or testimony based on such records) shall not be used in civil, criminal, administrative, or legislative proceedings without specific written consent or a court order, accompanied by a subpoena or other legal mandate compelling disclosure. Where required by law, notice and an opportunity to be heard will be provided to you or RRH prior to such use and disclosure.

For Criminal Justice Referrals: We may disclose information to persons in the criminal justice system where participation in an RRH Part 2 program is a condition of the disposition of the criminal proceedings against you. Your consent for these particular disclosures may only be revoked after the passage of time or event specified in the consent, for example, the date of final disposition of proceedings against you or any other action in connection with which your consent was given.

Prescription Drug Monitoring Programs: We may report any SUD medication prescribed or dispensed by an RRH Part 2 program to New York’s prescription drug monitoring program after obtaining your consent to such disclosure.

Other than the uses and disclosures described in this Notice, we will not use or disclose your health information without your written authorization. You may revoke your authorization at any time by submitting a written request to the Privacy Contact designated on Appendix A of this Notice. This revocation will not be applicable to uses and disclosures that we may have acted upon prior to your revocation of the authorization.

YOUR RIGHTS

When it comes to your health information, you have certain rights.

This section explains your rights and some of our responsibilities to help you. For more information on how to exercise these rights, please contact the Privacy Contact for the applicable Affiliate designated on Appendix A of this Notice.

To inspect and receive a copy of your medical record

- You can ask to see or get an electronic or paper copy of your medical record and other health information we have about you for as long as we maintain the data. Ask us how to do this.
- We will provide a copy or a summary of your health information, within the timeframe required by law. We may charge a reasonable, cost-based fee.
- You can direct us to send an electronic or paper copy of your health information to a third party. In most cases, we will send an electronic copy without charge to you. Ask us how to do this.

Ask us to correct your medical record

- You can ask us to correct health information about you that you think is incorrect or incomplete, for as long as the information is kept by RRH. Ask us how to do this.
- We may say “no” to your request, but we’ll tell you why in writing within 60 days.

Request confidential communications

- You can ask us to contact you in a specific way (for example, home or office phone) or to send mail to a different address.
- We will say “yes” to all reasonable requests.

Ask us to limit what we use or share

- You can ask us not to use or share certain health information for treatment, payment, or our operations. This right applies even if you have signed a consent for disclosure of SUD information for such purposes. In most cases, we are not required to agree to your request, and we may say “no” if it would affect your care.
- If you pay for a service or health care item out-of-pocket in full, you can ask us not to share that information for the purpose of payment or our operations with your health insurer and we will say “yes”. Any restriction we agree to is not effective to prevent uses or disclosures required by law or permitted by Part 2 for purposes other than treatment, payment, and health care operations.
- If we do agree to a request, we may still provide information, as necessary, to give you emergency treatment. If SUD information is disclosed to a health care provider for emergency treatment, we will request that such health care provider not further use or disclose the information.

Get a list of those with whom we’ve shared information

- You can ask for a list (accounting) of the times we’ve shared your health information for six years prior to the date you ask, who we shared it with, and why.
- We will include all the disclosures except for those about treatment, payment, health care operations, and certain other disclosures (such as any you authorized us to make). We’ll provide one accounting per year for free but will charge a reasonable, cost-based fee if you ask for another one within the same 12 month period.
- RRH typically does not disclose information to Intermediaries, which are entities other than a Covered Entity or Business Associate that receive your Part 2 information under a general designation (e.g., “my treating providers”). If you have consented to disclosures to an intermediary, you have the right to request a list of disclosures made by such intermediary for the 3 years prior to such request.

Get a copy of this privacy notice

- You can ask for a paper or electronic copy of this notice at any time, even if you have agreed to receive the notice electronically. We will provide you with a paper copy promptly. A copy of this Notice is also available on our website at <https://www.rochesterregional.org/policies/notice-of-privacy-practices>.

Choose someone to act for you

- If you have selected someone to make health care decisions on your behalf, or if someone is your legal guardian, that person can exercise your rights and make choices about your health information.
- We will make sure the person has this authority and can act for you before we take any action.

To be notified of a breach of your health information

- We are required by law to notify individuals affected by a breach of unsecured (i.e. unencrypted) protected health information. We will let you know promptly if a breach occurs that may have compromised the privacy or security of your information.

INFORMATION SHARING THROUGH APPLICATION PROGRAMMING INTERFACES (“APIs”)

- You have the right to request or authorize that your electronic PHI in your designated record set be transmitted to you or another person or organization through an API. APIs are computer coding mechanisms that permit two or more electronic computer applications or software programs to communicate with each other and share information. We are required by law to comply with requests regarding API transmissions, subject to certain exceptions. You understand that PHI transmitted through an API at your request will no longer be under our protection and control, will no longer be subject to the protections and rights outlined in this Notice, and may no longer be subject to the same laws, regulations, policies or procedures regarding its confidentiality, security, privacy, use, or disclosure. You understand and agree that you make any request to us to transmit your PHI through an API at your own risk and you assume all liability for the consequences of such action taken by us at your direction. We caution you to confirm any confidentiality, security or privacy protections with respect to your transmitted PHI with the recipient of the PHI prior to submitting a request to us to transmit your PHI through an API.

File a complaint if you feel your rights are violated

- You can complain if you feel we have violated your rights by contacting the Privacy Contact for the applicable Affiliate designated on Appendix A of this Notice.
- You can file a complaint with the U.S. Department of Health and Human Services, Office for Civil Rights using the following contact information:
 - Centralized Case Management Operations
 - U.S. Department of Health and Human Services
 - 200 Independence Avenue, S.W.
 - Room 509F, HHH Building
 - Washington, D.C. 20201
 - Website: <https://www.hhs.gov/civil-rights/filing-a-complaint/index.html>
 - Email: OCRComplaint@hhs.gov
- Violation of Part 2 is a crime. You may report suspected violations of Part 2 in the same manner as above.
- We will not retaliate against you for filing a complaint.

CHANGES TO THE TERMS OF THIS NOTICE

We may change the terms of this Notice in the future. We reserve the right to make changes and to make the new Notice effective for all current and future medical information that we maintain. The effective date can be found in the top right-hand corner of the Notice. If we make changes to the Notice, the new Notice will be posted and made available upon request at all sites where we deliver care, and on our website. You may request a copy of the current Notice in effect at any time.

(APPENDIX A) AFFILIATES COVERED BY THIS NOTICE AND PRIVACY CONTACT

All Rochester Regional Health locations that provide care to the public, including those listed below, will follow this Notice. The Rochester Regional Health affiliates listed below and their entities, and any future affiliates conducting joint treatment, payment and health care operations on behalf of Rochester Regional Health, will follow this Notice. For questions related to the content of this Notice, including your individual rights and how to exercise those rights, or to file a complaint, please contact the Privacy Contact for the appropriate Affiliate as designated below:

Privacy Contact for Rochester, Finger Lakes, and WNY Sites:

Rochester Regional Health | Chief Privacy Officer
Call Center: (585) 922-LINK (585-922-5465)
Toll-free: 1-877-922-5465
Email: PrivacyOffice@rochesterregional.org
<https://www.rochesterregional.org/locations/affiliates/>
Affiliates: The Rochester General Hospital, The Unity Hospital of Rochester, Unity Specialty Hospital, Clifton Springs Hospital & Clinic, Newark-Wayne Community Hospital, United Memorial Medical Center, Rochester Medical Health Center, PRCD, Inc., Clifton Springs Nursing Home, DeMay Living Center, Edna Tina Wilson Living Center, Park Ridge Living Center, Unity Living Center, Linden Surgery Center, Rochester Surgery Center, Westfall Surgery Center, Rochester Regional Health Home Care, Rochester Regional Health Hospice Care, Home Care Preferred, Rochester Regional Clinically Integrated Network, ElderONE, Clifton Pharmacy, Clifton Springs Pharmacy, Genesee Campus Apothecary, Rochester Regional Health Home Infusion Pharmacy, LLC, Greater Rochester Immediate Medical Care, PLLC, Rochester Regional Health Occupational Medicine, Western New York Medical Practice, P.C.

Privacy Contact for Northern New York Sites:

St. Lawrence Health System
Corporate Compliance and Privacy Officer
Canton-Potsdam Hospital | 50 Leroy Street | Potsdam, NY 13676
(315) 261-5050
www.rochesterregional.org/locations/hospitals/potsdam
Affiliates: Canton-Potsdam Hospital, Canton-Potsdam Medical Practice, PLLC, Gouverneur Hospital, Massena Hospital, Philligrey, Inc. d/b/a Seaway Valley Ambulance Service